

# **REPRESENTATIVES COMMITTEE RULES/CONSTITUTION**

## **1. NAME**

1.1. The "The Whiteley Village Representatives Committee" (WVRC) shall be hereafter referred to as the Committee.

1.2. Beneficiaries of Whiteley Homes Trust shall hereafter be referred to as "Villagers"

1.3. Whiteley Homes Leadership Team (WHLT) shall hereafter be referred to as the "Leadership Team".

## **2. AIMS AND OBJECTIVES**

2.1 To present the views and sentiments of Whiteley Homes Trust beneficiaries of all cottages, including Huntley House, and by association of Coach House Mews in Whiteley Village.

2.2 To always consider the wellbeing of Villagers, representing and putting forward their concerns to the Chief Executive Officer (CEO) and Trustees. The WVRC will also oversee the Whiteley Village Association of Clubs (WVAC).

## **3. MEMBERSHIP**

3.1. The committee will be composed of a Chairperson, Vice Chairperson, Secretary, Treasurer, Events Liaison Officer and one or two representatives from each named section of the Village. Officers will be elected in accordance with Paragraphs 4 and 5 herewith and shall cease to be representatives when they assume office.

3.2. A quorum for special meetings of the Committee shall be any eight members plus an officer to chair the meeting, together with a Secretary.

3.3. When required, the committee may, on special occasions, include Villagers to form a sub-committee, needed to carry-out specific tasks.

## **4. REPRESENTATIVES**

4.1. Representatives will be selected to serve a term of two years. Representatives may be re-elected at the end of this period.

4.2. Where two or more candidates are nominated for the role of Representative, an election will take place. The election will be in the form of a vote with ballot papers prepared and provided by the Secretary. The ballot papers will list the names of the candidates in alphabetical order.

4.3. Completed ballot papers are to be returned by a specified date and are to be placed in a sealed box which shall be placed in a secure location. At the end of the ballot period, the box shall be opened by the Secretary and Chairperson, who shall count and record the votes cast for each candidate.

4.4. The selection of Representatives shall be area specific. Representatives are to live in designated areas of the Village and will be voted for by Villagers in their

section. The names of the proposer and seconder for each candidate shall be regarded as confidential, until the result is known.

4.5. For Huntley House, the same procedure will apply but the secure location shall be in the named building, arrangements are to be made to ensure that the box is accessible to all residents.

4.6. Following the ballot, the result will remain confidential, ballot papers to be retained until the next committee meeting when the appointment of representatives shall be ratified.

4.7. In the event of a tie, a new vote will take place between the tied candidates. In the event of a further tie, the toss of a coin shall determine the result. The coin is to be thrown by the Secretary and witnessed by both tied candidates.

4.8. The result of the election is to be confirmed in the minutes of the committee meeting, and in the Octagon Magazine.

4.9. If a representative resigns, or cannot serve, or becomes an Officer of the Committee, an election will be held in accordance with Paragraphs 4.2 to 4.8.

4.10. In the case of a dispute, or valid disagreement between residents and a Representative, the residents may call for a Representative to resign, this will be subject to the approval of the Committee.

## **5. OFFICERS**

5.1. Only beneficiaries of the Whiteley Homes Trust will be eligible for election as officers of the WVRC.

5.2. Biennially, at the WVRC annual general meeting (AGM), and following the stepping down of the Chair, having served his/her term of two years, the meeting shall be called upon to elect a person to serve as Vice Chair for a period of two years.

5.3. After serving for two years, the Vice Chair will succeed the Chair of the Committee for a further period of two years. After completion of their term of office, officers may then stand for election as representatives in their section.

5.4. The position of Vice Chair will be **open to all Villagers** who have been resident in the Village for not less than one (1) year. This person must have shown a willingness to involve themselves in the welfare of the Village and Villagers living therein.

5.5. The selection of the Vice Chair will be **open to all Villagers**, who shall forward the name of their nominee to the Secretary.

5.6. Where two or more candidates are nominated for the role of Vice Chair, an election will take place. Candidates will be named on ballot papers prepared and provided by the Secretary, with Candidates free to campaign. Prior to a final vote, Candidates will be called upon to address Villagers at the AGM. Following this address, the vote will take place and the name of the winner announced.

5.7. If the Chair resigns or is unwilling or unable to remain in office the Vice-Chair becomes Acting Chair until the next election. A vote will be taken from the

representatives for the office of Acting Vice-Chair until the next election, a simple majority is required. The Acting Vice-Chair may continue to act as a representative of his/her section until the next election.

5.8. If the Vice-Chair resigns or is unwilling/unable to become Chair, the committee, in the interest of maintaining experience and continuity, may invite the Chair to serve for an additional year and a new Vice-Chair shall be elected by Villagers as 5.3. If the Officers are unwilling or unable to extend their time in post, elections will be held for any vacant position.

5.9. Where a lack of confidence in the Chair or Vice Chair is identified, an EGM may be called where the incumbent, subject to a two-thirds majority vote, may be called upon to resign his/her office.

5.10. The Committee will include a Secretary who shall record the proceedings of the Committee. The person selected will previously have served as a Representative and shall put himself/herself forward for the position of Secretary. If there is more than one candidate, a ballot shall be held with the result being declared at the AGM. The Secretary will serve for a period of two years, this period alternating with the Chair and Vice Chair appointments. After the two-year period of service, the Secretary may be re-elected.

5.10.1. If no member of the committee is willing to serve as Secretary, the committee may co-opt a Villager to this post. The decision will be ratified by confidential ballot of the Committee.

5.11. The treasurer will monitor the Welfare Fund and administer the bank account for payments etc. The treasurer will ensure that there are always two other members of the Committee with access to the account to provide scrutiny and maintain transparency. The person selected as Treasurer shall previously have served as a Representative and shall put himself/herself forward for the position of Treasurer. When more than two persons put themselves forward, a ballot shall be held with the result being declared at the AGM. The Treasurer will serve for a period of two years, this period alternating with the Chair and Vice Chair appointments. The Treasurer may be re-elected.

5.11.1. If no member of the committee is willing to serve as Treasurer, the committee may co-opt a Villager to this post. The decision will be ratified by confidential ballot of the Committee.

5.12. The committee will have an Events Liaison Officer who shall be responsible for supporting clubs, activities and events within the Village, and for encouraging resident participation and engagement across the community.

5.12.1. If no member of the committee is willing to serve as Events Liaison Officer, the committee may co-opt a Villager to this post. The decision will be ratified by confidential ballot of the Committee.

## **6. CONDUCT OF MEETINGS**

6.1. Minutes of meetings shall be taken by the Secretary and made available to all Villagers and the Trust. Minutes shall be recorded for future reference.

6.2. No person other than elected members of the Committee shall be present at its meetings except at the invitation of the Committee. The Committee may co-opt or invite any person to their meetings including Trustees.

6.3. Decisions of the Committee, not concerned with the rules shall be determined by a simple majority vote of representatives and officers. In the event of a tie, the Chairperson shall have a casting vote.

6.4. The Committee shall meet on alternate months unless otherwise notified.

6.5. The Secretary shall collate queries put forward by Section Representatives to be presented to the relevant member of the management team.

6.6. Any resident may request attendance at a meeting of the Committee to raise an area of concern by writing to the Secretary indicating the issue to be addressed. The resident will be invited to address the meeting for a limited period. Additionally, the Committee may ask questions for clarification. At the end of that agenda item the invited person must leave the meeting

## **7. ANNUAL GENERAL MEETING (AGM)**

7.1. Where possible, the AGM shall be held annually, but not more than 18 months apart. The AGM shall be in addition to the normal Committee meetings.

7.2. The AGM shall be restricted to Villagers only and therefore shall be a Private Meeting. Before the meeting commences, anyone wishing to record proceedings, shall make themselves known to the attendees, and shall obtain permission from all present. Should permission not be granted all recording shall stop immediately.

7.3. The AGM will provide the opportunity for the WVRC to report on its activities, present financial information, conduct elections and consider any proposed amendments to the constitution

7.4. Elections shall be held at the Annual General Meeting and where there are multiple nominations for a role, voting shall always be conducted by ballot using voting slips that are to be distributed and counted at the meeting. Postal or proxy voting will not be considered.

7.5. Where only one candidate is nominated for a position, that individual may be elected unopposed, subject to approval by a show of hands, counted by at least two people. If no candidate is identified, the Committee may appoint an interim individual to fulfil the role, until a formal election can be held.

7.6. In the event of a tie, a new vote will take place between the tied candidates. In the event of a further tie, the toss of a coin shall determine the result. The coin is to be thrown by the Secretary and witnessed by both tied candidates.

7.7. The AGM shall be publicised on the Village notice boards, and in the Octagon magazine at least 28 days in advance.

7.8. The AGM will receive a report from the Chair of the Committee. The changes of officers and elections in Part 4 and 5 will then take place. Any proposal for amendments to the rules/constitution will be heard in accordance with Part 10.

7.9. Advance notice of matters to be raised under any other business (AOB), shall be given to the secretary in writing, or by email at least 21 days before the scheduled meeting. However, matters can be raised from the floor at the AGM on the day of the meeting, provided this is discussed and agreed by the Chair prior to the commencement of the meeting.

7.10. Members of the Whiteley Homes Trust Leadership Team, or a nominated manager may request attendance and contribute where invited. They shall not have voting rights and shall not interfere with the independent operation or decision-making of the Committee.

## **8. EXTRAORDINARY GENERAL MEETING (EGM)**

8.1. An EGM must be called if at least 40 Villagers demand it, or it is deemed advisable, provided that at least 21 days' notice is given, and that the proposal is printed in the agenda and made known to all members at least 14 days before the meeting. Appropriate notice must be given to Villagers, and the purpose of the meeting shall be clearly communicated in advance.

8.2. Members of the Whiteley Homes Trust Leadership Team, or a nominated manager may request attendance and contribute where invited. They shall not have voting rights and shall not interfere with the independent operation or decision-making of the Committee.

## **9. RESPONSIBILITIES**

9.1. **Representatives.** Representatives should aim to contact all residents in their section prior to each meeting to identify any issues they wish to have raised.

9.2. **Chairperson.** The Chairperson shall chair the meetings and ensure that proceedings are fair and accountable and that meetings are run efficiently using structured agendas and reports and encourage participation from all Committee members and Villagers.

9.3. **Vice-Chairperson.** The Vice-Chairperson shall assist in the Chairperson's work and chair the meetings should the Chair be unable to attend the meeting for whatever reason.

9.4. **Secretary.** The Secretary shall record the proceedings of meetings and present the minutes to the Villagers, staff and Trustees, by posting on Village Store notice board and emailing a copy to the Chief Executive Officer and Clerk of the Trustees. This should be done within 14 days of the meeting.

9.5. **Treasurer.** Welfare funds are to be accessed through the Treasurer, who will sign off the funds. In the first instance, requests for funds should be made to the Secretary for presentation to the WVAC for approval. If agreed, they will then be considered by the WVRC and voted on before being approved.

## **10. AMENDMENTS TO THESE RULES**

10.1. Minor amendments to reflect changes to the composition of the Village by, for example, the introduction of another section/part may be made by the Committee but must be recorded in the minutes. If there are any objections, the full procedure for amendments shall be followed.

10.2. Proposals for amendments to the Rules may be made by any member of the Committee at any AGM or Extraordinary General Meeting. Amendments shall not be adopted, except by a two-thirds majority of those present at the meeting and shall be subject to approval by the Trustees.

10.3. The rules and constitution of the Committee shall be subject to formal review every five years when no other amendments have been made.

## **11. FINANCIAL CONTROL**

11.1. The WVRC shall ensure that all financial activity is conducted in a structured, transparent and accountable manner. Appropriate systems and records shall be maintained to document all income and expenditure.

### **11.2. Rules for accessing the Welfare Fund**

- Any group may submit a bid to the Treasurer prior to the WVAC meeting. Bids will then be considered by the Club secretaries. It is the responsibility of those submitting bids to provide accurate information about the estimated costs.
- If the WVAC approves the bid it will then be considered by the WVRC. If it passes both meetings the Treasurer will then release the funds to the group concerned.
- It is imperative that receipts are produced for all money spent. Any unspent surplus must be returned to the WF.
- Occasionally money is required between the Committee meetings. Provided it is below £200 and provided the WVRC executive officers agree funds may be released, but again receipts must be produced for all money spent.
- Some groups, especially those holding social events, may require an advance to pay for bands etc. Receipts must be produced to support all transactions pertaining to any advance. Accurate income/expenditure accounts must be produced within a maximum of seven days after the event.
- Any income from such events must be counted and signed for onsite by at least two people and then stored securely in a locked safe before being banked into the WF account. Cash should never be kept in an individual's home
- All profits must be paid into the WF account within a maximum of five days after the event.
- Where fund-raising events are held it is important that income/expenditure accounts are produced and where floats are needed, they must be documented and accounted for.
- Any group wishing to use the WF account to obtain money from an outside source must first seek approval from the executive officers and must produce receipts for the money spent.
- It is not acceptable to seek reimbursement after an event if prior permission is not sought.
- All cash counting and recording should be conducted by at least two individuals who should not be related.
- All cash income and donations should be accompanied by receipts or documented acknowledgments. Detailed records are essential.
- Expense Reimbursement: Volunteers involved in fundraising should remit full amounts collected without deduction unless agreed beforehand. Expenses incurred will only be reimbursed separately with proper receipts

## **12. COMPLAINTS PROCEDURE**

12.1. The WVRC is committed to handling complaints in a fair, respectful and timely manner. Wherever possible, concerns should be addressed informally in the first instance, by the section reps and discussion with a member of the Committee.

12.2. Where a matter cannot be resolved informally, a formal complaint may be submitted in writing to the Secretary. The WVRC shall acknowledge receipt of the complaint, consider the matter carefully, and provide a response outlining any findings and action. In cases where a complaint raises serious concerns or cannot be resolved by the WVRC, the matter may be referred to the Whiteley Homes Trust Leadership Team for further consideration.

## **13. DISSOLUTION**

13.1. In the event that the WVRC is dissolved, the decision to do so must be approved by a two thirds majority at an Extraordinary General Meeting. Any remaining funds shall be applied for the benefit of the residents of Whiteley Village, also to be approved at an EGM.

## **14. WHITELEY HOMES LEADERSHIP TEAM (WHLT)**

14.1. The Whiteley Homes Leadership Team comprises the CEO and Executive Officers.

14.2. The WHLT have indicated that the minutes of each WVRC meeting, are included with their papers at their bi-monthly meetings. and that the Committee may request a meeting with them on matters raised by the WVRC.

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